

		Here, no proof of service has been filed showing compliance with Code of Civil Procedure section 704.770. The hearing therefore is CONTINUED to the date and time set forth above. All parties must be served as required by Code of Civil Procedure section 704.770. Creditor is ordered to file a proof of service at least 10 days before the next hearing date. Failure to do so may result in the order to show cause being vacated. Creditor is ordered to give notice of this ruling.
2.	Jessica Hernandez vs. AMCP Holdings 2025-01475407	Before the court is the continued hearing on the order to show cause as to the sale of the dwelling at 17391 Breda Lane, Huntington Beach, California 92649 that was issued on the application of assignee and judgment creditor 1st Integrity Capital of America LLC (Creditor). Based on the application, the court issued to order to show cause on May 6, 2025, and set the hearing on the order for June 12, 2025. Prior to that date, the parties submitted a stipulation and order to continue the hearing to August 21, 2025, while they discussed a possible resolution. Prior to the continued hearing date, Creditor submitted a status report explaining the property was jointly owned by defendant and judgment debtor Chris Pitts (Debtor) and his spouse, Debtor and his spouse are engaged in ongoing dissolution of marriage proceedings, and the judge in the dissolution of marriage proceeding indicated ownership of the property must be resolved in that case before any sale can be ordered. Accordingly, on August 21, 2025, the court ordered the hearing on the order to show cause continued to this date to wait further proceedings in the dissolution case. Since that time, the court has continued the hearing on the order to show cause two additional times to allow the family law case to proceed. The court last conducted a hearing on the order to show cause of June 4, 2026. At that time, Creditor reported the family law trial had commenced, but was then continued for further evidence regarding this property. Since the last hearing, the court has not received any further updates from the parties. It appears, however, the family law court completed the trial on June 30, 2026, and issued a ruling awarding the property at issue to Debtor's spouse as her sole and separate property. Creditor's counsel is ordered to appear at the hearing (remote appearance is acceptable) to confirm the status of the family law matter and address how the court should

		proceed with respect to this order to show cause, including whether the court should vacate the order to show cause in light of the family law court ruling.
3.	<i>City of Buena Park vs. Forsyth</i> 2026-01546372	Before the court is the continued hearing on the petition for appointment of receiver filed by petitioner City of Buena Park (Petitioner) regarding the real property located at 5832 Darlington Avenue, Buena Park, California 90621 (Property). As more fully set forth below, the motion is GRANTED. (Health & Saf. Code, § 17980.7(c).) Petitioner has demonstrated there are significant and ongoing housing and building code violations at the Property, which pose a serious risk to the health and safety of any occupants and the public. (See Zapien Decl., ¶¶ 10-14, 21-23 and Exhs. A-F.) Petitioner also has demonstrated the owner of the Property, respondent Richard L. Forsyth (Respondent), has been afforded a reasonable opportunity to correct the conditions at the Property but has failed to do so. Petitioner issued multiple citations and letters to Respondent between 2018 and 2025 regarding the dangerous conditions at the Property. (See Zapien Decl., ¶¶ 8-21.) Despite the passage of seven years, Respondent has failed to cure the violations at the Property. The court finds Petitioner's nominated receiver, Amanda R. Wheeland, has the demonstrated capacity and expertise to develop and supervise a viable financial and construction plan for the satisfactory rehabilitation of the Property. (Health & Saf. Code, § 17980.7(c)(2)). Notice of this petition was duly given to Respondent, but no response from Respondent has been filed. The court received an opposition to the petition from respondent Bank of America, N.A., as Successor in Interest to Countrywide Bank, FSB (Bank of America). Bank of America does not dispute the Property is in substandard condition and endangers the health and safety of its occupants and the surrounding residents. It appears Bank of America objects to the court issuing an order that the receiver's lien would take priority over Fannie Mae's lien on the Property, claiming federal law would preempt and prevent the granting of such a super-priority lien. Bank of America has offered no authority specifically addressing receiverships for substandard buildings or holding a trial court is barred from appointing receivers pursuant to California Health and Safety Code section 17980.7 to abate a substandard building where a federally backed loan encumbers the property. Similarly, although it is clear the